

Defendant Johnson represented to the Court he was informed on January 16, 2026, two weeks ago, that Magidov has retained a third party e-discovery vendor to process and produce the documents, but that he had not received the remaining documents as of January 23, 2026. (Jacob's Reply Dec. ¶ 8)

The court finds that it is justifiable for Magidov to wish to redact sensitive financial information such as Social Security numbers from the remaining attachments to emails. Defendant Johnson makes no argument that he should have access to this information. He argues that the Stipulated Protective Order should be sufficient to assuage Magidov's concerns in this regard. The court agrees with Magidov that merely labeling files "for Attorney's Eyes Only" is not a reasonable security precaution given the highly sensitive and confidential nature of Social Security numbers.

The court believes Defendant Johnson and Plaintiff Sunpoint should have a better paper trail of efforts to meet and confer regarding retaining an e-vendor to handle Magidov's documents. After all they have agreed to split the costs of Magidov's production.

It has been three months since Magidov produced the 1500 pages of emails *sans* attachments. Magidov's silences, such as from October of 2025 to January 15, 2026 do not appear to be justified, and in particular Defendant Johnson's email from November 4, 2025 contains a handful of concerns in addition to the redaction issue which do not appear to have been resolved.

Orders

The court finds that Magidov has not substantially complied with the Subpoena issued in March of 2025. The court orders Magidov to pay Defendant Johnson sanctions in the amount of \$6,500, due and payable immediately.

Magidov is ordered to redact Social Security numbers from the attachments, and produce the redacted documents within 30 days of the entry of this order. The court orders the cost of redacting Social Security numbers from the attachments to be borne by the parties 50/50, in the same manner as they are sharing costs of the e-vendor.

13. 9:01 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION, AMENDED RESPONSES, AND RECORDS**

FILED BY: CLANCY, TIMOTHY F.

TENTATIVE RULING:

Plaintiff Timothy Clancy brought a Motion to Compel Deposition, Amended Responses and Records and Monetary Sanctions Against Defendant and Counsel, Lewis Brisbois.

Defendant Gary Johnson filed opposing papers in which he requested the court order sanctions against the Plaintiff and his counsel.

[1] Motion to Compel Continued Deposition of Defendant

The motion to compel the Deposition of the Defendant is denied for two reasons. First, the motion is untimely. Section 2025.480 of the Code of Civil Procedure provides in relevant part:

(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.

Second, the motion is denied for the independent reason that Defendant has already appeared for deposition on May 27, 2026 (94 days before this motion was filed) and has not refused to re-appear for a further deposition. Defense counsel emailed Plaintiff's attorneys on August 27, 2025 stating he "will produce Mr. Jurado for further deposition limited to documents that you claim were requested and not produced prior to his May 27, 2025 deposition. (Scott Dec. ¶ 6) This is a reasonable position. Nonetheless, Plaintiff filed the instant motion two days later, on August 29, 2025.

Before this motion was filed, the Defendant declared his agreement to appear at a further deposition. There is no showing from Plaintiff that Defendant has a history of failing to appear at a properly noticed deposition. No order from the court compelling compliance is necessary.

In addition, the motion to compel further deposition does not cite a single question that the Defendant refused to answer.

The motion to compel Defendant appear at a further deposition is denied. The court anticipates that the further deposition will occur with the cooperation of the parties as represented in the correspondence before the court.

[2] Plaintiff's Motion to Compel Amended Responses to the Defendant's Written Responses to the Request for Production of Documents

Plaintiff's Motion to Compel Amended Responses to the Defendant's Written Responses to the Request for Production of Documents is denied as untimely. Section 2025.480 of the Code of Civil Procedure provides in relevant part:

(a) If a deponent fails to answer any question or *to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice* or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer

declaration under Section 2016.040. (Emphasis added.)

Defendant produced documents and served a Third Amended Response to Plaintiff's Request for Production of Documents on May 5, 2026. (Mavrogianis Dec. Exs. A, B) Defendant produced additional documents on May 22, 2025. (Mavrogianis Dec. Ex. C) The Defendant's deposition was taken on May 27, 2025. This motion was filed on August 29, 2025 -- 94 days after the deposition. It is untimely.

The Plaintiff's explanations of why further responses are needed fall into three categories.

In the first category is the objection that Defendant failed to state that he has complied in full or in part, or explain why requested documents do not exist, per CCP §§ 2031.220 and 2031.230. This objection was raised to Requests for Production nos. 1-17, 21-29, 31-50, 52-63.

This is a valid objection on its face. Defendant's written objections failed to state that he has complied in full or in part, or explain why requested documents do not exist. However, Plaintiff knew or should have known that the Defendant's response was insufficient for this reason as soon as he received Defendant's Third Amended Response to Plaintiff's Request for Production of Documents on May 5, 2026. There is no reason to excuse the untimely motion to compel further responses.

The second category of Plaintiff's objections are those in Requests for Production nos. 18, 19 and 20 that describe how Plaintiff learned of the Notice of Violation after the May 27, 2025 deposition of the Defendant. But Defendant has already produced the Notice of Violation and there is no explanation of why further production is needed.

The third category of Plaintiff's objections concerns Requests for Production nos. 30 and 51. To these requests, Defendant answered that he has fully complied. Thus the objection that Defendant has not stated whether he has fully complied is overruled as nonsensical.

The court recites below its individual rulings on all 63 of the Plaintiff's Requests for Production as contained in the Plaintiff's Separate Statement, filed August 29, 2026.

REQUESTS FOR PRODUCTION NOS. 1-17, 21-29, 31-50, 52-63:

To Requests for Production nos. 1-17, 21-29, 31-50, 52-63, Defendant responded, "Responding Party objects to this request as vague, ambiguous, and overbroad. Responding Party objects to this request on the grounds that it seeks information not relevant to the subject litigation and not reasonably calculated to the lead to the discovery of admissible evidence."

Plaintiff's sole objection to the Defendant's response to these interrogatories was, "Respondent must either state he has complied in full or in party by producing all records in his possession, custody or control, or that if any of the requested documents do not exist , Respondent must explain why in a response. CCP §§ 2031.220, 2031.230."

Defendant served objections to the document requests on or about May 22, 2025. (Garcia Dec., ¶ 6, Mavrogianis Dec., ¶13) Plaintiff was able to make this objection when he received Respondent's Written Response to the Request for Production on May 22, 2025. Plaintiff's motion to compel on the basis of this objection was filed on August 29, 2025, more than 60 days after the objections were

received and is untimely per CCP § 2025.480.

REQUEST FOR PRODUCTION NO. 18:

ALL COMMUNICATIONS exchanged with the U.S. Army Corps of Engineering RELATING TO the SUBJECT PROPERTY from 2016 to present.

Motion to compel further responses to **Request for Production No. 18** is denied. Plaintiff contends that he learned after the Defendant's May 27, 2025 deposition that Defendant had not produced the Notice of Violation. As of the time Plaintiff filed this motion, Defendant has already produced the Notice of Violation. Plaintiff's description of Respondent's failure to produce the Notice of Alleged Violation at the time of the deposition does not constitute a reason why further production or explanation should be compelled.

REQUEST FOR PRODUCTION NO. 19:

ALL DOCUMENTS exchanged with the U.S. Army Corps of Engineering RELATING TO the SUBJECT PROPERTY, including the CREEK, from 2016 to present.

Motion to compel further responses to **Request for Production No. 19** is denied. Plaintiff contends that he learned after the Defendant's May 27, 2025 deposition that Defendant had not produced the Notice of Violation. As of the time Plaintiff filed this motion, Defendant has already produced the Notice of Violation. Plaintiff's description of Respondent's failure to produce the Notice of Alleged Violation at the time of the deposition does not constitute a reason why further production or explanation should be compelled.

REQUEST FOR PRODUCTION NO. 20:

ALL COMMUNICATIONS exchanged with ANY public agency RELATING TO the SUBJECT PROPERTY, including the CREEK, from 2016 to present.

Motion to compel further responses is denied for the reason stated above for Requests Nos. 18 and 19.

REQUEST FOR PRODUCTION NO. 30.

ALL COMMUNICATIONS exchanged with Caleb Boateng RELATING TO the SUBJECT PROPERTY, including the CREEK.

RESPONSE TO REQUEST FOR PRODUCTION NO. 30:

Responding Party has produced all responsive documents

Plaintiff's motion to compel further written response to **Request For Production No. 30 is denied.** Plaintiff's sole objection to the Defendant's response to these interrogatories is, "Respondent must either state he has complied in full or in part by producing all records in his possession, custody or control, or that if any of the requested documents no exist, Respondent must explain why in a response. CCP §§ 2031.220, 2031.230."

Here, Defendant clearly stated that *he has produced all responsive documents*. His response

indicated he complied in full. Plaintiff's objection is nonsensical in addition to being untimely.

REQUEST FOR PRODUCTION NO. 51.

YOUR insurance policy for the SUBJECT PROPERTY.

RESPONSE TO REQUEST FOR PRODUCTION NO. 51:

Responding Party has already produced the requested document.

Plaintiff's motion to compel further written response to **Request For Production No. 51 is denied.** Plaintiff's sole objection to the Defendant's response to these interrogatories is, "Respondent must either state he has complied in full or in part by producing all records in his possession, custody or control, or that if any of the requested documents no exist, Respondent must explain why in a response. CCP §§ 2031.220, 2031.230."

Here, Defendant clearly stated that *he has produced the requested document*. The Defendant's response is sufficient to affirm that he has complied in full. Plaintiff's objection is nonsensical in addition to being untimely.

[3] Sanctions

The court denies Plaintiff's motion for sanctions because the court denied Plaintiff's motions to compel further deposition of Defendant and further responses to the Defendant's Written Responses to the Request for Production of Documents.

The court denies Plaintiff's motion for monetary sanctions for "deposition misconduct" raised for the first time in Plaintiff's Reply to Motion to Compel Deposition, Amended Responses and Records; and Monetary Sanctions against Defendant and Counsel, Lewis Brisbois. ("Plaintiff's Reply," at page 6). There was no mention of a request for sanctions on this basis in Plaintiff's notice of motion and motion or any of moving papers filed on August 29, 2025. By raising this issue for the first time in the Reply Papers, Plaintiff has deprived the Defendant of notice and an opportunity to brief the court in advance of the hearing. The issue is not properly before the court.

The court grants Defendant's written request for sanctions in part because the Defendant acted in good faith in agreeing to produce Defendant for further deposition and Plaintiff did not act in good faith in bringing a motion to compel in the absence of any refusal to answer a question, a refusal to appear for deposition, or any history of failing to appear for a deposition. However, the court only awards part of the sanctions because the Defendant's Written Responses to the Request for Production of Documents were for the most part inadequate on their face. Most of Defendant's written objections failed to state that he has complied in full or in part, or explain why requested documents do not exist. The cookie cutter response, "Responding Party objects to this request as vague, ambiguous, and overbroad. Responding Party objects to this request as it seeks production of documents protected from disclosure by the attorney-client communication privilege and/or the attorney work product doctrine," without more, was insufficient and designed to be obstructive. Plaintiff's motion in this regard was denied for untimeliness, but his point concerning most of the objections was substantively valid.

Therefore the court awards sanctions against Plaintiff's counsel of \$3,000 due and payable in 10 calendar days.

[4] Orders

The court denies Plaintiff's motions to Compel Further Deposition of Defendant and Further Responses to the Defendant's Written Responses to the Request for Production of Documents.

The court does not rule on the issue of whether Defendant should produce the 1000 pages of documents it received under a FOIA request because the Plaintiff has not asserted that those documents are covered by a timely request for production at issue before the court.

Law & Motion
Add On

14. 9:00 AM CASE NUMBER: C25-01567

CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)

**HEARING ON DEMURRER TO: COMPLAINT
FILED BY:**

TENTATIVE RULING:

Defendant Mount Diablo School District's demurrer is **sustained without leave to amend as to Monte Gardens Elementary School and otherwise it is sustained with leave to amend as to the entire complaint.** Plaintiffs have 30 days from notice of entry of order to file and serve an amended complaint. Additional time has been given to amend the complaint to allow time for Plaintiff Dean to file an application to be appointed guardian *ad litem* before filing an amended complaint.

Plaintiffs Alexis Dean and Minor (a minor and Dean's child) filed this complaint against Monte Gardens Elementary School (Mount Diablo Unified School District). (The Court is using a pseudonym for the minor plaintiff in an abundance of caution, see Code of Civil Procedure § 372.5). Plaintiffs alleged two causes of action, one for general negligence and a second for intentional torts, relating to the school's treatment of Minor.

Defendant demurs to the complaint on several grounds, including that Monte Gardens is not a proper defendant, Plaintiffs have not alleged compliance with the Government Claims Act, Plaintiffs have not pled what duty was breached, Plaintiffs have not alleged facts to state a cause of action for negligence or intentional tort and Dean has not alleged direct injury to herself.

The allegations in the complaint and the briefing show that Dean is attempting to act as Minor's guardian *ad litem*. Dean has not been appointed guardian *ad litem* for Minor. Dean shall file